

Court No. - 2

Case :- WRIT - C No. - 669 of 2022

Petitioner :- Nyaz Meer

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Prashant Saxena

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasia

Hon'ble Dr. Kaushal Jayendra Thaker, J.

Hon'ble Ajai Tyagi, J.

List the matter in the month of March, 2022 as fresh at the request of Sri Prashant Saxena, learned counsel for the appellant.

Sri Madan Mohan Chaurasia, learned counsel for the respondent is present.

Order Date :- 25.2.2022

DKS

Court No. - 3

Case :- WRIT - C No. - 669 of 2022

Petitioner :- Nyaz Meer

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Prashant Saxena

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasia

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Ashutosh Srivastava, J.

None appears for the petitioner, even in the revised call. Learned Standing Counsel representing the respondent nos. 1 & 2 and Shri Madan Mohan Chaurasia, learned counsel for the respondent no. 3 are present.

This writ petition has been filed praying for the following reliefs:

"I. Issue a writ, order or direction in the nature of writ of certiorari quashing the impugned demand notice dated 13.10.2021 issued by respondent no. 3 and to allow the writ petition.

II. issue a writ, order or direction in the nature of writ of mandamus commanding to respondent no. 3 not to give effect to the demand notice dated 13.10.2021 in the interest of justice."

In Paragraph 8, 9 and 10, the petitioner has stated that no opportunity was afforded to the petitioner to file objection and thus, the demand notice of Rs.2,01,840/- has been issued without giving an opportunity of hearing to the petitioner.

Learned counsel for the respondent no. 3, on instructions, states that the petitioner may submit his objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, which shall be considered and decided by the respondent no.3/competent authority in accordance with law by a speaking and reasoned order.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, the writ petition is ***disposed of*** giving liberty to the petitioner to file an objection before the respondent no.3 within four weeks from today along with certified copy of this order ventilating his grievance. In the event such an objection is filed within the stipulated period, the same shall be decided by the respondent no.3 within next four weeks in accordance with law by a reasoned and speaking order after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 7.5.2022

Ravi Prakash